

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

DONNA HAAS NATHANSON,

Petitioner

VS.

LONNY HARRIS NATHANSON,

Respondent

) Case Number: FDI-25-800764

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER RE: FINANCIAL RESTRICTION ORDERS & SANCTIONS; OR ORDER  
SHORTENING TIME

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Donna Haas Nathanson and Respondent Lonny Harris Nathanson.
- 2) On 7/17/26, Petitioner filed an ex Parte Request for Order seeking: (a) an order requiring Respondent to cover the overdraft from retirement account x290 within 24 hours; (b) admonishment of Respondent for strict compliance with the Automatic Temporary Restraining Orders (ATROS); (c) an order prohibiting Respondent to use Petitioner's personal credit card and reimbursement of \$4,729.32 in car insurance charges within 48 hours; (d) reservation of jurisdiction over the issue of Respondent's breach of fiduciary duty to trial on 11/3/26; and (e) \$5,000 in Family Code section 271 sanctions. Petitioner asserts that Respondent violated the ATROS and engaged in financial misconduct that put community assets at risk.
- 3) Respondent filed a Responsive Declaration (file dated 7/16/26) in opposition to Petitioner's requests. Respondent asserts that Petitioner did not engage in meaningful meet and confer efforts. Respondent further disputes Petitioner's allegations and alleges Petitioner comes to the Court

1 with unclean hands as she has similarly incurred fees for the use of retirement funds, including  
2 funds from account x290.

- 3 4) On 7/17/26, the Court denied Petitioner's request for emergency relief and set the matter for  
4 hearing on 9/8/26.

5 **B. Findings and Order**

- 6 1) Family Code section 2040(a) prohibits both parties from transferring, encumbering,  
7 hypothecating, concealing, or in any way disposing of, any property, real or personal, whether  
8 community, quasi-community, or separate, without the written consent of the other party or an  
9 order of the court, except in the usual course of business or for the necessities of life, and  
10 requiring each party to notify the other party of proposed extraordinary expenditures at least five  
11 business days before incurring those expenditures and to account to the court for all extraordinary  
12 expenditures made after service of the summons on that party.”
- 13 2) Respondent is admonished that, pursuant to Family Code section 2040(a)(2)(a), the Court may  
14 remedy a violation of the ATROS by awarding restitution to the aggrieved spouse in the amount  
15 they would have realized at dissolution had the property not been disposed of in violation of the  
16 ATRO.
- 17 3) In so far as retirement account x290 was over drafted, Respondent shall cure the overdraft within  
18 24 hours and shall be solely responsible for any fees associated therewith, though the Court notes  
19 that the documentary evidence attached to Petitioner's 7/17/26 Request for Order appears to show  
20 the account has a total value of \$2,157,346.78.
- 21 4) The following issues are reserved for trial either because they are trial issues or upon a finding of  
22 good cause:
- 23 a. Petitioner's request for reimbursement of funds (including Respondent's alleged use of  
24 Petitioner's credit card for car insurance payments).
- 25 b. Petitioner's request for a finding that Respondent's breached his fiduciary duty.
- 26 c. Petitioner's request for \$5,000 in Family Code section 271 sanctions
- 27 5) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 28 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within  
29 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other

1 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule  
2 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
3 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
4 10 days may allow the other party to prepare a proposed order and submit it to the court in  
5 accordance with CA Rules of Court, Rule 5.125(d).  
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